

		The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01565947 Tarbell vs. Estate of Eugene Gorny	The Court has read and considered: (1) Defendant Kyle Gorny's Motion to Quash Service of Summons (ROA 43); (2) Defendant Alyssa Gorny's Demurrer to Complaint (ROA 27); and (3) Defendant Adam Gorny's Demurrer to the Complaint (ROA 26). The Court takes Judicial Notice of the Complaint (ROA 2), Application to Serve Summons by Posting -Unlawful Detainer (ROA 9) and the 6/26/2026 Minute Order (ROA 55). As to the Motion to Quash Service of Summons by Kyle Gorny, the Court GRANTS the motion to quash service. The Complaint (ROA 2) attached an email from Kyle Gorny to Plaintiff's counsel dated March 19, 2026, that Kyle Gorny had not resided at the premises since approximately 2013 and he was only listed as an occupant on the 2012 lease. The Court would note that the residential lease agreement dated 6/7/2012, attached to the Complaint, states that the premises are for the personal residence of Eugene R. Gorny Jr. and "children Kyle, Adam and Alyssa." Plaintiff's counsel was on notice prior to submitting the Application to Serve Summons by Posting with the Court on 5/16/2026 that Kyle Gorny did not reside at the address and posting and mailing were not likely to lead to actual notice of the proceedings to Kyle Gorney. As to the Demurrer to the Complaint filed by Adam and Alyssa Gorny, the Court SUSTAINS the Demurrer. Plaintiff fails to attach to the Complaint a true and correct copy of the 3-day notice to quit, seeks to recover past due rent but does not indicate in the complaint that a 3-day notice to pay rent or quit was served on the Defendants, and fails to state the specific subpart supporting why tenancy is exempt from the Tenant Protection Act of 2019. Plaintiff is granted leave to amend the complaint within 5 days of the Court's ruling. The Court strikes the Order to Serve Summons by Posting (ROA 11). Plaintiff is ordered to serve each named Defendant pursuant to the applicable code sections and provide proof of service of the Amended Complaint on each Defendant. Possession is no longer at issue in this matter. The Court Clerk is to provide notice of the Court's ruling.
10	30-2026-01570325 Kimble, Drivdahl & Turtzer, LLC vs. Hernandez	The Court has read and considered the Defendants' Demurrer to the Complaint (ROA 12) and the Plaintiff's Opposition (ROA 24). Defendants contend that Plaintiff failed to serve a valid notice to perform covenants or quit as required by California Code of Civil Procedure section 1161(3), and therefore request that the Court sustain the demurrer without leave to amend.

	The Court finds that, within the four corners of the complaint, the pleading is facially sufficient. Defendants' remaining arguments—specifically, whether Mr. Michael Burns is required to complete a caregiver addendum in order to reside at the property—raise factual and legal disputes that go to the merits of the action. Such issues are not properly resolved on demurrer.. The Court OVERRULES the demurrer, and the Defendants are ordered to file an answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
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